

FROM Robert Samuel White
TO [Kotek Campaign Chair]
CC Governor Kotek
DATE January 16, 2026, 10:39 AM PT
SUBJECT **Fw: 42 U.S.C. § 1983**
DOCUMENT 01KF3Y8QJRN00E6Q81NEKSFJET

Marissa,

I saw the header on your Twitter profile. That moment mattered to you.

You're ignoring an analogous situation now.

Oregon State Parks abused me, then expelled me for documenting it. I refused erasure.

Now I'm suing for First Amendment retaliation. The evidence is comprehensive. The case is black and white. I will win.

Your candidate will own this silence. A gay governor who refused to act when a gay volunteer documented constitutional violations by state employees - in an election year.

This is your last chance before federal court.

The institution either self-corrects, or the courts force correction.

Choose.

— Samuel White
<https://oprdivolunteerabuse.org>

From: Robert Samuel White <rsw@rswfire.com>
Sent: Friday, January 16, 2026 6:29:27 AM
To: [Program Manager]
Cc: SUMPTION Lisa * OPRD <>; <>; governor.kotek@oregon.gov <governor.kotek@oregon.gov>
Subject: 42 U.S.C. § 1983

[Program Manager],

On March 27, 2025, you expelled me from all Oregon State Parks volunteer programs explicitly for protected speech.

You documented this yourself in writing. You cited my public speech about documented abuse as grounds for permanent removal.

That is First Amendment retaliation. A clearly established constitutional violation.

Under 42 U.S.C. § 1983, you face personal liability for violating constitutional rights while acting under color of state law. This means your personal assets and finances are at risk - not just professional consequences through the state.

Garcetti v. Ceballos, 547 U.S. 410 (2006) protects citizen speech on matters of public concern. Volunteer abuse and institutional accountability are matters of public concern. Your written expulsion letter is direct evidence of unconstitutional retaliation.

You cannot claim qualified immunity. First Amendment retaliation has been clearly established law for decades. You knew or should have known that expelling someone for protected speech violates the Constitution.

I am demanding the following:

Immediate reversal of my expulsion - I was removed for exercising constitutional rights. That expulsion is void.

Written acknowledgment that the expulsion was retaliatory and unconstitutional.

Removal of all documentation that frames my protected speech as grounds for expulsion from volunteer service.

Independent investigation into the documented misconduct at Honeyman State Park that I reported before you retaliated against me.

I should not have to live with an expulsion that bars me from future employment or volunteer opportunities within Oregon State Parks based on my exercise of First Amendment rights.

This expulsion was orchestrated to silence documentation of supervisory abuse. It serves [Park Supervisor]'s interests, not any legitimate institutional purpose.

You have until MARCH 26, 2026 to:

Reverse the expulsion in writing.

Initiate independent investigation.

Acknowledge the constitutional violation.

If you fail to act, I will pursue personal damages against you under Section 1983 in federal court. Your liability is documented in your own words. The case is black and white.

This is not negotiable. This is law. You violated my civil rights. You documented it yourself.

One final note: Your professional background is in Diversity, Equity, and Inclusion. You held an institutional position specifically meant to protect vulnerable people from abuse and retaliation.

You knew better. Or you should have.

That makes this violation worse, not better. You had specialized knowledge of civil rights protections. You had professional responsibility to prevent exactly what you did.

Instead, you weaponized your authority to silence documentation of abuse. You formalized retaliation in writing. You expelled someone for exercising constitutional rights after reporting supervisory misconduct.

You failed every principle your role was supposed to uphold.

That will not protect you from liability. It establishes that you acted with knowledge that what you were doing was wrong.

Fix it, or face the consequences.

—Robert Samuel White

<https://oprdivolunteerabuse.org>